The Producer Companies Rules, 2021

MINISTRY OF CORPORATE AFFAIRS
NOTIFICATION
New Delhi, the 11th February, 2021

[Amended upto date[1]]

G.S.R. 112(E).—In exercise of the powers conferred by sub-section (4) of section 378H and sub-section (1) of section 378ZL read with sub-sections (1) and (2) of section 469 of the Companies Act, 2013 (18 of 2013), and in supersession of the Producer Companies (General Reserve) Rules, 2003, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:—

1. Short title and commencement.- (1) These rules may be called the Producer Companies Rules, 2021.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Applicability. - These rules shall apply to a Producer Company as referred in clause (l) of section 378A.

3. Definitions.- (1) In these rules, unless the context otherwise requires,-

(a) ‘‘**Act**’’ means the Companies Act, 2013 (18 of 2013);

(b) ‘‘**section**’’ means the section of the Act;

(c) “**co-operative society**” means a society registered or deemed to be registered under any law relating to co-operative societies for the time being in force in any State.

(2) Words and expressions used in these rules but not defined and defined in the Act or in the Companies (Specification of Definitions Details) Rules, 2014, shall have the same meanings respectively assigned to them in the Act or in the said rules.

4. Change of place of registered office from one State to another.- The

rules 27, 30 and 31 of the Companies (Incorporation) Rules, 2014, including the forms stated therein shall be applied for the purpose of change of place of registered office of a Producer Company from one State to another.

5. Investment of general reserves.- A Producer Company shall make investments from and out of its general reserves in any one or in combination of the following, namely:--

(a) in approved securities, fixed deposits, units and bonds issued by the Central Government or State Governments or co-operative societies or scheduled bank; or

(b) in a co-operative bank, State co-operative bank, co-operative land development bank or Central co-operative bank; or

(c) with any other scheduled bank; or

(d) in any of the securities specified in section 20 of the Indian Trusts Act, 1882 (02 of 1882); or

(e) in the shares or securities of any other inter-State co-operative society or any co-operative society; or

(f) in the shares, securities or assets of public financial institutions specified under clause (72) of section 2 of the Act.

[F. No. 5 /1 /2020-CL.I]
K.V. R. MURTY, Jt. Secy.

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1. No amendment